STANDARD OPERATING PROCEDURE			P-4820	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **03/14/14**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 20-152, 29-4501-29-4507 MIRANDA V. ARIZONA, 384 US 436 (1966)			
SUBJECT INTERVIEW AND MIRANDA WARNINGS	CROSS REFERENCE P-4800 CRIME INVESTIGATION			

I. Purpose:

The purpose of this policy is to establish the procedures for conducting interviews and interrogations and issuing Miranda warnings.

II. Policy:

The interview and interrogation of individuals shall be accomplished in a manner that ensures due process of the law. Deputies must scrupulously follow the guidelines of statute and case law pertaining to interview and interrogation.

III. Definitions:

A. INTERVIEW: For the purpose of this policy, an interview shall be the gathering of information and statements from an individual, who may be a victim, witness, or suspect, on a voluntary basis, when the individual is not in custody.

B. INTERROGATION: For the purpose of this policy, an interrogation shall be the questioning of a suspect regarding a crime when that suspect is in custody or substantially deprived of his or her liberty.

C. MIRANDA WARNINGS: Those warnings the Supreme Court requires be given to an individual "prior to questioning" whenever a law enforcement officer takes that person into "custody" or otherwise deprives him or her of his or her "freedom of action in any significant way."

IV. Procedure:

A. Interviews-Deputy Responsibilities: Interviews of victims, witnesses, and suspects generally do not require Miranda warnings under the following circumstances:

1. **Field Interviews:** Deputies may make inquiries of a person on public or private property under suspicious circumstances without advising an individual of his or her Miranda rights. The individual must not be in custody.

2. **Crime Scenes**: Deputies need not provide Miranda warnings to persons at the scene of a crime when the deputies are initially gathering facts surrounding the crime. This would apply to any scene where deputies are required to gather general information at a scene (e.g. traffic accidents, rescue calls, etc.).

3. **Voluntary Statements:** Deputies have no duty to stop an individual from making voluntary statements, and no Miranda warning is required. The individual should be encouraged to complete a voluntary written statement.

4. **Non-custodial Interviews:** Deputies need not provide Miranda warnings prior to questioning a suspect who is not in custody. The following criteria must be present for the individual to be considered **not** in custody:

   a) The suspect is not under arrest and has not been told he or she is under arrest.

   b) The individual is free to leave the location or is free to ask the deputies to leave his or her home.

   c) The individual has unrestrained freedom of movement during the questioning.

   d) The individual is not in a “coercive” environment. The following would create a “coercive” environment.

      (1) Numerous deputies on scene.
      (2) Strong arm or deceptive questioning strategies are employed by deputies.
      (3) The interview is conducted at a very late or early time.

5. **Gathering Identification Information:** Deputies need not provide Miranda warnings prior to gathering such information as name, address, date of birth, etc.

6. **Telephone Interviews:** Generally, deputies may question individuals on the telephone without providing Miranda warnings.

7. **Traffic Infractions:** Generally, Miranda warnings need not be provided for traffic infractions unless a person has been arrested or taken into custody for a felony or misdemeanor traffic offense.

8. **Arrests without Questioning:** Miranda warnings need not be provided when no questions are asked regarding criminal activity.

B. **Interrogation-Deputy Responsibilities:** Deputies must advise suspects Miranda warnings in order to protect the admissibility of their statements as evidence in court. These warnings must be given whenever the suspect is the subject of a custodial interrogation. Custody includes any of the following situations:

1. The subject is under arrest.

2. The subject's freedom is restricted in any significant way.

3. The subject is not free to go, or the deputy would not allow the subject to go if he or she chose to do so.

4. The deputy has the individual's identification.

5. The subject is restrained in any way (handcuffed, locked in a patrol unit, etc.).

6. The circumstances are such that a reasonable person in the subject's position would not believe that he or she was free to go, or would believe that he or she must answer questions before being allowed to go.

C. **Interrogation at Detention Facility:** Deputies conducting interrogations at the Sheriff's Office, the jail, or any other facility controlled by a law enforcement agency or corrections department shall adhere to the following:

1. If the crime which the deputy is investigating is a felony or involves any of the following: a death, sexual assault, kidnapping, child abuse or strangulation, the deputy shall ensure the interrogation, including the individual's waiver of rights, is electronically recorded.

2. Electronic recording shall include an audio recording device, a digital recording device, or a video recording device.

3. If the subject in custody is willing to make a statement or waive his or her rights, but refuses to do so while being electronically recorded, the deputy shall terminate the interview.

D. **Miranda Warnings:** The following five warnings shall encompass the Miranda warnings:

1. You have the right to remain silent.

2. Any statement you make can and will be used against you in court.

3. You have the right to talk to a lawyer before answering any questions, and to have a lawyer with you during questioning.

4. If you want a lawyer and cannot afford a lawyer, one will be provided for you, free of cost, before any questioning.

5. You can stop the questioning at any time.

E. **Administering Miranda Warnings-Deputy Responsibilities:** If there is any question whether or not Miranda warnings should be administered, the deputy should administer the warnings.

1. Miranda warnings must be given in a clear, unhurried manner. The Miranda warnings should be read off a card.

2. The suspect must feel free to claim his or her rights without fear.

3. Miranda warnings must be given so that the accused can comprehend and knowingly act on the information.

4. Miranda warnings must be given prior to beginning the interrogation.

5. If possible, the deputy should use a Rights Advisory Form to provide the Miranda warnings. The suspect should sign the form.

6. The exact procedure the deputy used to provide the Miranda warning should be noted in the appropriate report (e.g. an incident or an arrest report).

7. Only when the suspect makes a voluntary, knowing, and intelligent waiver of all of his or her rights may a deputy initiate an interrogation. A voluntary, knowing, and intelligent waiver must include:

a) The person must be of sound mind at the time of the warnings.

(1) The subject cannot be of diminished mental capacity.
(2) The subject cannot be intoxicated or under the influence of drugs.
(3) The subject cannot be injured to the extent that understanding or judgment may be impaired.
(4) The subject cannot be hysterical or severely emotionally distraught.

b) The person must not be coerced or tricked into waiving his or her rights.

c) The person must provide an affirmative response of understanding to each Miranda warning. A nod of the head in an affirmative manner is

acceptable as long as it is clearly understood that this is an affirmative response.

8. The Miranda warnings must be provided completely even if the suspect states he or she knows his or her rights.

9. The Miranda warnings must be provided completely for each separate interrogation.

10. If the subject expresses a desire for counsel or expresses a desire to remain silent prior to, or at anytime during the interrogation, the questioning must stop until he or she has consulted an attorney or the subject seeks out a deputy and insists on communicating without the presence of an attorney.

F. **Miranda Warnings for Juveniles:** A juvenile may have the capacity to make a voluntary waiver of his or her rights. The admissibility of the confession depends upon factors including age, intelligence, education, experience, and the ability to comprehend the meaning and effect of the statements and its consequences. If there is any question, the deputy should make contact with the juvenile's parent or guardian and request consent to interrogate the juvenile. If a parent or guardian is unavailable, the deputy should contact the On-Call Juvenile Probation Officer for guidance.

G. **Miranda Warnings for Hearing Impaired Subjects-Deputy Responsibilities:**

1. In order to comply with State law, deputies shall provide any hearing impaired person arrested and taken into custody with a qualified interpreter as soon as possible.

2. The deputy taking a deaf or hard of hearing person into custody shall request Communications contact a licensed interpreter. The deputy shall document in the appropriate report the name of the interpreter.

3. A licensed interpreter must be provided prior to any interrogation, warning or notification of rights, or taking of a statement unless the person has waived his or her right to an interpreter and the waiver is made knowingly, voluntarily, and intelligently. The waiver of an interpreter must be made in writing.

4. Deputies should also provide an interpreter for any prolonged questioning of a hearing impaired person, even when the person is not a suspect.